

FACTS TO PONDER ABOUT THE 2004 GENERAL ELECTION

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VOTER REGISTRATION:

Number of statewide Ohio provisional ballots rejected because voter was declared “not registered”¹ **22,000**

Why did this happen? **Results of studies in Cuyahoga County, where 5,400 provisional votes were rejected as “not registered” may explain this:**

Legitimate provisional voters apparently mistakenly purged from the list of registered voters² **600-900**

Other sources of potential unjustified provisional ballot rejection:

Submitted registration forms that were never entered (projected from sample)³ **2,700**

Submitted registration forms that were entered incorrectly with errors ranging from minor to major (projected from sample)⁴ **13,400**

Submitted registration forms in which voters made errors (projected from sample) **3,300**

Timely warning to voters to check their registration status if they have not received written confirmation from the BOE **None**

Publicly available website database enabling voters to check their registration status **None**

Consistent written procedure for voters to correct errors in their registration before or after the registration deadline **None**

¹ Based on inquiries to 18 counties representing over 60% of Ohio’s 35,000 rejected provisional ballots.

² http://www.clevelandvotes.org/news/reports/Analyses_Full_Report.pdf,

³ These and the next two lines, taken from a study of the fate of 9600 registration forms submitted by the Greater Cleveland Voter Registration Coalition, http://www.clevelandvotes.org/news/reports/Analyses_Full_Report.pdf, were projected to the total of 313,000 non-duplicate registration forms submitted from all sources to the Cuyahoga County Board of Elections prior to the 2004 election.

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Conclusion: Most “not registered” rejections are likely due to Board of Elections clerical or database problems or procedures, but voter errors or registrations handed in late are also significant problems. However, many additional voters were probably disenfranchised because some poll workers did not provide provisional ballots. Also, after the registration deadline, many voters may have been incorrectly told that they were not registered, when this was really due to BOE or voter registration errors, which caused them not to be on the rolls or only in an unsearchable entry. If results of Cuyahoga County studies (mainly on registrations in Cleveland) are projected to all the major urban areas of Ohio, it is estimated that 24,300 registrants were totally disqualified and 45,500 are at some degree of risk of disqualification mostly because of BOE errors but partly due to voter registration errors⁵. Therefore, registration reforms will reduce both rejected provisional ballots and votes never cast.

WRONG PRECINCT PROBLEM

Number of Ohio voters whose provisional ballots were rejected because they were cast in the wrong precinct⁶**10,500**

Explanation: In Cuyahoga County, about 52% of this group of rejected provisional ballots were cast in the correct polling place⁷, and, therefore, were due to poll worker failure to inform. Many of the remainder are likely due to registration errors on the part of the BOE or the voter, as explained above, and to occasional failures of the BOE website, which gave voters erroneous polling places (3 October cases documented). Designation of “jurisdiction” for voting as “county” rather than “precinct” would restore the vote to a majority of these 10,500 disenfranchised voters.

Number of Pennsylvania voters whose provisional ballots were “partially counted” (for all but precinct-specific issues) because they were cast in the wrong precinct (total presidential votes cast in PA almost the same number as in Ohio)**11,700**

Conclusion: In Pennsylvania, votes cast in the wrong precinct were saved whereas, in Ohio, almost the same number of votes were rejected. Also, it does not appear that Pennsylvanians availed themselves of this option more than Ohioans who voted erroneously in the wrong precinct.

ARE PROVISIONAL BALLOT REJECTIONS IN CUYAHOGA COUNTY SIMILAR TO, OR DIFFERENT FROM, OTHER COUNTIES?

The total provisional ballot rejection rate in Cuyahoga County (34%) was third highest in the state (behind Lucas at 41% and Belmont at 39%) but was trailed closely by 4 other counties with 30% or more rejection (including Hamilton County).

⁵ Same report as footnote 2.

⁶ See reference 1.

⁷ <http://ohiovigilance.org/Counties/Cuyahoga/Analysis/CuyWrongPrecinctSummary.pdf>

The major official reasons for provisional ballot rejection in Cuyahoga County were similar to those of 17 other counties that were polled:

Rejected as “not registered”: Cuyahoga.....	69% of rejected ballots
17 other counties.....	61%
Rejected for “wrong precinct”: Cuyahoga.....	27% of rejected ballots
17 other counties.....	31%

However, within counties, certain subgroups of citizens are at greater risk of rejection. Change of address problems, triggering provisional ballot usage, are likely to be higher in populations that move more frequently; youth, low income, and minorities⁸. For instance, in Cuyahoga County, provisional ballot rejection in precincts with over 90% black populations was nearly twice as great as in precincts that are 10% or less black.

Conclusion: Total percent of provisional ballots rejected in Cuyahoga County were in the state’s highest group but reasons for rejection were similar to other counties. Therefore, the detailed analysis of reasons for rejection in Cuyahoga County given on pages 1 and 2 are likely to apply to most other Ohio counties; i.e., Cuyahoga County results were not atypical.

DID REJECTED PROVISIONAL BALLOTS LOSE MORE VOTES FOR DEMOCRATS OR REPUBLICANS IN OHIO IN 2004?

Calculated number of rejected provisional votes of Republicans⁹ **16,300 (47%)**

Calculated number of rejected provisional votes of Democrats **18,000 (51%)**

Conclusion: Rejection of provisional votes seems to be a bipartisan issue, but precinct-level data would be necessary to reach a definitive conclusion. For instance, precinct-level data in Cuyahoga County showed a racial disparity in provisional ballot rejection (see above).

LOSS OF VOTES AS A LIMITATION OF MAIL-IN ABSENTEE BALLOTS

The new “no-fault” rules will undoubtedly increase the number of absentee ballots in Ohio, but some literature indicates this will not greatly increase total turnout. Rather, more voters will choose the convenience of mail-in rather than polling place balloting. This comes with a price. Precinct level optical scans or electronic voting machines in 2006 will supply the voter with immediate feedback to correct errors in their choices. This feedback will not be available to the mail-in voter. Based on research in Florida¹⁰ a 3-4 fold increase in number of “unrecorded” (“residual” under- or overvotes) would be predicted in majority African American or low-income (median less than \$25,000) communities when absentee ballots are used.

⁸ http://www.clevelandvotes.org/news/reports/Analyses_Full_Report.pdf

⁹ For each county, the number of rejected provisional ballots (information from Sec. of State Office) was multiplied by the percent of total votes cast for Kerry or Bush to give the estimated number of rejected provisional votes in that county for each candidate. Next, for each of these two categories, the sum of rejected provisionals for all 88 Ohio counties by Kerry or Bush supporters was determined.

¹⁰ Kimball, D.C, et al, “Unrecorded votes and political representation” in “Counting Votes”, R.P. Watson, ed., University of Florida Press, 2004.

Conclusion: Low-income or minority absentee voters should be encouraged to do a walk-in vote at the Board of Elections, where optical scan or electronic machine feedback could be made available.

LACK OF EVIDENCE FOR VOTER FRAUD

Number of cases of voter/registration fraud in Nov. 2004 election under investigation as of March 21, 2005 by Cuyahoga County (with 313,000 non-duplicate registration/change of address forms submitted and over 655,000 votes cast)2

Number of cases of Voter Fraud brought to Ohio Courts of Appeals, 2000-present, with over 8 million votes cast in the 2000 & 2002 Ohio General Elections.....0

Number of fraudulent attempts to vote in the course of 2 Ohio general elections (2002 and 2004) in which over 9 million votes were cast¹¹4

Number of voter fraud problems reported nationally after the Department of Justice used “all available means” and mounted “a formidable effort” to detect voter fraud in the November 2002 General Elections¹²”few problems”

Incidence of election fraud across 50 states in the largest study to date of election fraud¹³”minimal”

The available data in Ohio is in good agreement with this national data. In early April, volunteers from the Greater Cleveland Voter Coalition called Sheriffs and County Prosecutor Offices in 13 counties that had been named in allegations of "rampant" voter registration fraud in a report by Mark Hearne submitted to Congressional hearings on March 21, 2005¹⁴. We also received information from ACORN/Project Vote and ACT, which had been named in many of these allegations. Although the responses from some of the Counties were indefinite, we could piece together the existence of a total of 5 prosecutions (including a conviction in Defiance County) and a few more cases possibly under investigation. Unfortunately, there is no state office that keeps track of these investigations and prosecutions.

Our current estimate is that the number of proven voter registration fraud cases for the 2004 election will be between 5 and 10. This must be seen in context: Over 750,000 new registrations were submitted statewide in 2004. If there were 100 such registrations submitted per case (as in Defiance County), then, at most, 1,000 questionable registrations were submitted, which represents about a tenth of 1% of all registrations. Also, the COHHIO/LWV OH report found only 4 cases of fraudulent voting among 9 million votes¹¹. In sum, our present system works well to correct a minimal number of

¹¹ “A joint report on election reform activities in Ohio” issued by The Coalition of Homelessness and Housing of Ohio and the League of Women Voters of Ohio, June 2005.

<http://www.cohhio.org/alerts/Election%20Reform%20Report.pdf>

¹² http://www.house.gov/judiciary_democrats/agmidtermvoterresponse2403.pdf

¹³ *Securing the Vote: An Analysis of Election Fraud* http://www.demos-usa.org/pubs/EDR_-_Securing_the_Vote.pdf

¹⁴ “Ohio Election Activities and Observations”, <http://www.ac4vr.com/news/OhioElectionReport.pdf>

registration or voting violations, and does not require additional harsh measures that will disenfranchise many thousands of Ohioans.

UNINTENDED CONSEQUENCES OF PHOTO ID REQUIREMENT FOR VOTING

a. Massive selective disenfranchisement of legitimate voters. First, from Ohio Census data and a detailed study from the University of Wisconsin¹⁵, we estimate that **738,436** adult Ohioans have neither driver's license or state ID. Of these, **350,531** are 65 years or older. Many of these citizens with neither form of photo ID will show up at the polls with no other identification, and half of them will be over 65. For instance, if only 5% of these adults failed to bring their other identification with them, we would turn back nearly 37,000 legitimate voters (half of them elderly), forcing them to go back and return with their identification or vote provisional ballots which have a risk of rejection for trivial reasons.

Second, from the University of Wisconsin study (from which Table 1 was formulated) we know that four classes of citizens stand out because they are substantially less likely to have licenses or state ID: they include the elderly (23% don't have photo IDs); youth 18-24 including college students with non-local ID's, African Americans and Hispanics (about 50% don't have photoID, and the percentage is still higher in young adults). The homeless should also be included as likely to face disenfranchisement.

Table 1

Populations without driver's licenses (University of Wisconsin study)				
	All adults		Adults 18-24 years old	
	Male %	Female %	Male%	Female %
White	17	17	36	25
African American	55	49	78	66
Hispanic	46	59	57	63

Finally, many of those who move more frequently will not have current photo ID addresses. We know from US census data, that moving is 6 times more frequent in young adults than older adults, twice as frequent in those with low than high incomes, and 50% more frequent in minorities than non-minorities. In other words, the new ID requirement in HB3 will doubly tend to disenfranchise voters who are young, poor, or minority – first because they are less likely to have a photo ID and secondly because, if they do, it is less likely to be current because they have recently moved. The law does allow for use of an ID at a non-current address but it requires the voter give the last 4 digits of the license or state ID number (adding another layer of confusion to already overburdened poll-workers). The law also allows for other forms of identification (bank statement, government check, etc.) but a massive public education campaign will be necessary to warn voters ahead of time to bring these items with them to their polling places.

b. It will create long lines at general elections. In Ohio's 2004 elections, 2-3% of voters (about **129,000 votes**, almost equally Republican and Democrat) gave up and did not vote

¹⁵ <http://www.uwm.edu/Dept/ETI/barriers/DriversLicense.pdf>

because of long lines¹⁶. The new law compels poll workers to check every voter's identification information and where this is lacking, to issue even more provisional ballots. Added to anticipated problems with the new electronic recording machines coming into use in 2006, this new requirement greatly increases the chance that long lines will happen again and will effectively disenfranchise thousands of voters. This will selectively impact working voters or parents with child care considerations who would be unable to return to the polls a second time to bring the proper identification, if they did not have it with them on their first attempt to vote..

c. It puts undue pressure on provisional ballots. If a fully registered voter is forced to vote a provisional ballot, that person is more subject to rejection of their vote because of errors in filling out the form or clerical errors in establishing voter legitimacy. In addition, the increased costs of handling these thousands of extra provisional ballots represent an unfunded mandate from the state legislature.

CONSEQUENCES OF OHIO NOT ENFORCING FEDERAL NVRA RULES FOR VOTER REGISTRATION BY PUBLIC ASSISTANCE AGENCIES:

The National Voter Registration Act (“motor voter act”) (1993) requires that states ensure that public assistance agencies register voters in the same manner as Bureaus of Motor Vehicles¹⁷.

Percent of all Ohio’s voter applications (Registrations/Change of Address, Nov. 2002-Nov. 2004) submitted by Ohio public assistance agencies¹⁸**1.4%**

National average (39 states) of percent of statewide applications submitted by public assistance agencies¹⁸**2.9%**

Percent of applications from Public Assistance Agencies in Tennessee after state was placed under court order to enforce NVRA¹⁸.....**16.1%**

Additional voters that would be registered or submit change of address forms *annually* if Ohio enforced NVRA public assistance mandate as well as Tennessee¹⁹**45,000 to 180,000**
(depending on whether as many as 75% or almost none, respectively, had already registered elsewhere)

¹⁶ Section III of report at http://www.democrats.org/a/2005/06/democracy_at_ri.php

¹⁷ <http://www.fvap.gov/laws/nvralaw.html>

¹⁸ “The impact of the National Voter Registration Act of 1993 on the Administration of Elections for Federal Office, 2003-2004”. <http://www.eac.gov/docs/NVRA-2004-Survey.pdf>

¹⁹ These numbers were derived by taking 16.3% of Ohio’s 2,834,685 applications reported for 2002-2004 (ref. 19), deducting the 1.4% (i.e. 38,821) that were submitted by Ohio public assistance agencies, and then assuming that the percent of these that were new registrations (54%) and changes of address (33%) were the same as those reported overall by Ohio in reference 18. The total number for the 2 years (2002-2004) was divided by 2 to get an annual number of applications. However, many of these applicants could have been registered by Registration groups that were targeting low-income populations.